

the motion"].)

IV. Conclusion

For the foregoing reasons, the Motion for Summary Judgment, or in the Alternative, Summary Adjudication, is **denied**. The Court will entertain an application to file a renewed motion by Defendant, provided it is not simply a "reformatted, condensed, and cosmetically repackaged" version of this motion. (See *Patterson v. Sacramento City Unified School Dist.* (2007) 155 Cal.App.4th 821, 827.)

6. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF SECOND AMENDED COMPLAINT**
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

Please see Line 7.

7. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: PLAINTIFF'S SECOND AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

The demurrer is **sustained without leave to amend**, as discussed below. The motion to strike is **denied as moot**.

I. Factual Background

The Second Amended Complaint ("SAC") here involves tax sales of real property by Contra Costa County (erroneously sued as County Board of Supervisors of Contra Costa County) to plaintiff, Praveen Gupta. Plaintiff purchased the parcels by way of auction. One parcel (APN 264-081-013-7) was purchased in February of 2014 while the other (APN 264-081-014-5) was purchased in February of 2016. (SAC, ¶¶4.) Plaintiff alleges that the County sold the parcels despite lack of an easement. (SAC, ¶¶5-7.)

Plaintiff alleges that the County has assessed the parcels consistent with them being accessible by the easement over neighboring land. (SAC, ¶12) Nonetheless, a court judgment in April 2024 found plaintiff's properties had been landlocked at the time he purchased them, as well as since that time. (*Ibid.*)

While not described in detail in the SAC, the Court takes judicial notice of the Statement of Decision by the trial judge in that case, the Honorable Terri Mockler, who heard testimony, visited the site, and reviewed numerous documentary exhibits. (See Request for Judicial Notice in Support of Opposition to Demurrer to Complaint, filed September 22, 2025, Ex. B [Notice of Entry of Order with attached Statement of Decision].) Judge Mockler found in favor of the defendant neighbors (*id.* at 20), making numerous factual and legal findings, including, but not limited to (1) plaintiff's disputes with the neighboring owners pre-dated his purchase in 2016, (2) the City of Orinda did not misrepresent